

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

Appellate No. SYN-CA4-26-CV-4103 · Guild Appearance and Disclosure

Filed January 30, 2026

Silas Northmere enters an appearance as appellate counsel for appellee Piedmont Booksellers Guild. Counsel represented the Guild in the district proceedings and is authorized to accept electronic notices and service in this appeal. The Guild asks that the clerk direct correspondence to the contact information submitted with this filing. Additional counsel may appear only through a later filing that complies with the Court's rules.

The Guild is the plaintiff in District of South Carolina Case No. SYN-DSC-26-CV-0107. It obtained preliminary relief on January 23 after written submissions and the January 19 hearing. The City sought a district stay on January 26; the Guild opposed; and the request was denied January 28. The City filed its notice of appeal the following day. The Guild appears to defend the existing interim protection while the district claims remain unresolved.

This appearance does not waive an objection to the scope or form of any appellate motion. Counsel acknowledges that a response to a request for a stay must include the disclosure required by Local Rule 8 unless it has already been filed in the appeal. This document supplies that disclosure. The Guild consents to electronic service and will preserve prompt communication because its first announced fair is scheduled for February 14.

Organizational Disclosure

Piedmont Booksellers Guild is a fictional nonprofit membership association. It has no parent corporation and no shares of stock. No publicly held corporation owns ten percent or more of the Guild, controls it through an equity interest, or holds a financial stake that must be reported under Federal Rule of Appellate Procedure 26.1. The organization is governed by its nonprofit board and membership procedures.

Guild members include independent booksellers, small presses, librarians, and individual readers. Membership does not make each participant a corporate affiliate or an additional party. Some members sponsor author honoraria or take vendor tables at Cedar Commons fairs, but none controls this litigation through a publicly traded ownership interest. Miriam Bellweather serves as executive director and testified in the district record; she is not a separate appellee.

No insurer, indemnitor, publicly traded creditor, or outside litigation financier directs the Guild's position. Counsel has not identified an entity whose undisclosed financial interest could reasonably be affected by the Court's disposition. The requested protection concerns literary programming and municipal permit administration rather than a claim for compensatory damages. The Guild will amend this statement if later information makes supplementation necessary.

This disclosure is confined to organizational and financial relationships relevant to the governing rule. It does not address the evidentiary weight of declarations from member booksellers, the Guild's associational standing, or the disputed effect of event charges. Those matters belong to the record and the parties' substantive submissions.

Related Proceedings and Certificate

Counsel knows of no separate appellate proceeding involving the same parties and January 23 injunction. The district action remains pending, and no final merits judgment has been entered. The present case is an interlocutory appeal under the jurisdictional theory stated in the City's notice. The Guild does not identify a related bankruptcy, administrative review, or state-court action requiring coordination with this docket.

The Guild will use the clerk's existing caption and does not request joinder, substitution, or consolidation. Its members and participating authors are not separately named parties. The City of Norvale is the sole appellant shown on the opening notice. If another proceeding later creates a reporting obligation, counsel will notify the clerk rather than relying on this statement indefinitely.

I certify that the Guild Appearance and Disclosure was filed electronically on January 30, 2026, and that the system served counsel appearing for the City of Norvale. A copy was also sent to the Guild's executive director for confirmation of the organizational information. The disclosure was prepared after inquiry into the Guild's governance and financing appropriate to a nonprofit association.

The Guild reserves all positions concerning interim relief, jurisdictional scope, merits review, and the proper correction of any defect in the form of the district injunction. Nothing in this document asks the Court to decide those questions. Respectfully submitted on behalf of Piedmont Booksellers Guild by its appellate counsel on January 30, 2026.